1986–87 Solicitors' Files — Preservation and Disclosure Workstream

Version 1.0.0 · 2026-10-23

Editors of the Great House Farm Legal Wiki

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Page 3234 of the Great House Farm Legal Wiki, carried over from the version last modified on 2026-10-20. The same page is published at research.bucklerfamily.estate, and this version is also a PDF in the wayback archive.

1 Release notes

1.1 This release (version 1.0.0)

- **2026-Oct-23** - Carried over to the docs library from Legal Wiki page 3234 (last modified 2026-10-20 15:37:30 UTC). The page text, dates and references are as on the wiki. Links to wiki pages lead to the same page on research.bucklerfamily.estate; images are links to their files on the wiki.

1.2 Older versions

None yet.

2 Record

This material now lives at https://fcg.bucklerfamily.estate/case/1986-87-solicitors-files-preservation-disclosure-workstream.

Page ID: 3234 · **Title:** 1986–87 Solicitors' Files — Preservation and Disclosure Workstream · **Evidence status:** Not yet labelled — see the Editing Protocol · **Version:** 1.0.0 · Editing Protocol

Status: working page drafted 16 October 2026. No preservation notice has been sent yet. This page tracks a targeted enquiry for surviving solicitor files associated with *BP Properties Ltd v Buckler*, the trial and appeal, and any distinct title/registration work. It does not allege that any firm acted improperly, that a record exists, or that a record has been destroyed.

2.1 What the reported judgment identifies

The published Court of Appeal report dated 31 July 1987 names, for appellant W. Buckler, counsel instructed by Robbins Olivey & Blake Lapthorn, acting as agents for Loosemores of Cardiff. For respondent BP Properties Ltd it names counsel instructed by Linklaters & Paines. It also records that no grant of representation to Mary's estate had been taken out by that time. These are historic facts recorded in the judgment, not proof of later file custody or estate status.

Source: GHF-E141 — Court of Appeal judgment. Hugh James announced that Loosemores joined with the firm on 3 July 2023; that makes Hugh James a sensible route for a custody enquiry, but does not prove the historic client file transferred or survives: Hugh James / Loosemores announcement.

2.2 Lead register

Lead	Reason	Request scope	Status
Loosemores of Cardiff / current custodian enquiry via Hugh James	Named as the appellant-side firm in the reported appeal instruction chain (through Robbins Olivey & Blake Lapthorn).	1986 trial and 1987 appeal client file; instructions; pleadings; counsel briefs; trial/appeal bundles; title deeds /plans; correspondence with the client, counsel, BP, HMLR and court; file index, transfer and retention /disposal records.	Concrete lead. Draft preservation and voluntary disclosure enquiry prepared; not sent.
Linklaters LLP / Linklaters & Paines historic file enquiry	Named for BP Properties Ltd in the reported Court of Appeal proceedings.	1986–87 respondent-side file; appeal /trial records; counsel briefs; instructions, bundle indexes and plans; and, as distinct file streams, any related 1969/1975 conveyance, root-title, 1982–83 first-registration or 1987 amalgamation work.	Concrete lead. Draft preservation and voluntary disclosure enquiry prepared; not sent.
Pinsent Masons / historic Masons lead	The reviewed appeal report does not name Masons as BP's appeal solicitors. Any role in a separate transaction or proceeding remains unconfirmed.	First ask whether the firm or a predecessor acted for BP in a related Great House Farm conveyancing, title, registration, land or enforcement matter. Seek preservation only if a responsive file can be identified.	Unconfirmed lead. Draft identification enquiry prepared; not sent.

2.3 Preservation request — minimum particulars

- Ask the firm to preserve any responsive paper and electronic records while the enquiry is investigated, including material in off-site storage or a closed-file archive, and to pause routine destruction where possible.
- Ask for confirmation of the responsible custodian, file reference, dates covered, current location, transfer history, retention status and whether a destruction/disposal entry exists.
- Specify pleadings, court and appeal bundles, counsel briefs, instructions, title documents and plans, conveyancing /registration papers, HMLR correspondence, emails, attendance notes, advice, billing narratives, archive indexes, file-transfer notes, and retention/destruction logs.
- Ask that the firm identify what can be disclosed voluntarily and what authority, consent, proof of identity, grant of representation or court order may be required.
- Do not demand disclosure of legally privileged or confidential information on the assumption that a family connection or public-interest investigation supplies an entitlement.
- Keep a copy of each actual notice, date sent, delivery evidence, response, follow-up and any documents produced. Only then update status from "draft not sent."

2.4 FOI, confidentiality and estate authority

These are not statutory FOI requests. A private law firm is not ordinarily subject to FOIA merely because it acted for a party; this task should begin as a preservation request and voluntary records enquiry. FOIA may still be relevant to a public authority's own records about its communications with the firm, but that is a separate request to that authority. Source: ICO guidance on who is covered by FOIA.

The judgment's statement that no grant of representation to Mary's estate had been taken out is limited to the position as at the 1987 appeal. It does not establish whether a grant was issued afterwards. Check current probate records and ask firms what authority they require before requesting or receiving confidential client/estate records. Preservation can be requested while disclosure authority is clarified.

2.5 Legal separation rule

Maintain separate tracks for (1) the root title and exact land extent; (2) any register mistake and potential alteration/rectification; (3) indemnity eligibility, loss, causation and limitation; and (4) any fraud-based challenge to the 1987 judgment. Dillon LJ's overriding-interest statement is conditional on Mary having acquired a valid title. It is not a finding that she had done so and does not alone reopen the judgment.

The original Land Registration Act 1925 indemnity provision included a special six-year-from-registration proviso. Section 2 of the Land Registration Act 1997 substituted section 83 and removed that special proviso, introducing a knowledge-based accrual rule; the Land Registration Act 2002, Schedule 8 paragraph 8, also uses a knowledge-based rule. The 1983 registration date alone therefore does not resolve limitation, but neither does the changed rule prove a claim is still viable. Identify the claimant, precise claim, loss, causation, knowledge chronology, any default and the applicable transitional/statutory regime before reaching a conclusion. Sources: Land Registration Act 1997, s.2; Land Registration Act 2002, Sch.8.

2.6 Relevant wiki records

- GHF-E141 — reported judgment
- BP v Buckler: Scope, Decided & Undecided
- 1983 First Registration: Parcel A Title Basis
- Legal Review — Fraud, Land and Human Rights
- 6 October legal review addendum (updated 16 October)
- Missing Records Register — M-055 to M-057
- FOI & Records Requests — Backstory, Status and Forward Plan

Control rule: no request is "sent" until the actual outgoing message and dispatch/receipt evidence have been filed. No adverse inference should be drawn from a firm's inability to locate a file until its custody, retention and search response are understood.

Change history is maintained on the Master Change Log; no separate page-local version footer is maintained.